

document in order to determine the full request and the full response.” Rule 3.1345 also requires that the separate statement must include the text of each request/interrogatory, the text of each response, and the factual and legal reasons for compelling a further response. (*Ibid.*) A trial court is well within its discretion to deny a motion to compel discovery based on the party’s failure to comply with the separate statement requirements of CRC Rule 3.3145(a). (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.)

Here, Plaintiff failed to provide any separate statement. While Plaintiff argues that Defendants’ responses to the discovery were not code-compliant, without a separate statement, the Court cannot determine the validity of the objections.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2507346	CAMACHO vs RIVERSIDE UNIFIED SCHOOL DISTRICT	MOTION TO STRIKE COMPLAINT ON COMPLAINT
CVRI2507346	CAMACHO vs RIVERSIDE UNIFIED SCHOOL DISTRICT	DEMURRER ON COMPLAINT

Tentative Ruling:

Defendant’s Demurrer, as to the 1st and 3rd Causes of Action is denied; as to the 2nd Cause of Action, it is sustained with 20 days leave to amend.

Defendant’s Motion to Strike is denied.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defects can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Government Claims Act

Compliance with the Government Claims Act is a “condition precedent” to maintaining a suit for damages against a public entity. (Govt. Code, § 945.4; *State of California v. Superior Court* (*Bodde*) (2004) 32 Cal.4th 1234, 1240.)

Under the Government Claims Act, a plaintiff bringing suit for monetary damages against a public entity or employees must first present a claim to the public entity (“government claim”) that must be acted upon or deemed rejected by the public entity. (Govt. Code §§ 945.4, 950.2, 950.6(a).) It is an element of a cause of action against a public entity. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) The purpose is to provide sufficient information to the public entity to enable it to adequately investigate claims and settle, if appropriate, without the expense of litigation. (*Ibid.*) It is required irrespective of the public entity’s actual knowledge of the circumstances. (*Ibid.*) A plaintiff must allege compliance, or that an exception or excuse for noncompliance exists. (*Ibid.*)

A government claim must contain the following information: (1) the name and address of the claimant; (2) the address which the person presenting the claims seeks the notices to be sent; (3) the date, place and other circumstances of the occurrence or transaction gave rise to the claim asserted; (4) a general description of the indebtedness, obligation, injury, damage or loss; (5) the names of public employees causing the injury, damage or loss; and (6) the amount claimed. (*Id.* at § 910.) The claim must be signed by the claimant or by some person on his behalf. (*Id.* at § 910.2.)

As stated by the California Supreme Court:

The purpose of these statutes is “to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation.” [Citations.] Consequently, a claim need not contain the detail and specificity required of a pleading, but need only “fairly describe what [the] entity is alleged to have done.” [Citations.] As the purpose of the claim is to give the government entity notice sufficient for it to investigate and evaluate the claim, not to eliminate meritorious actions [citations], the claims statute “should not be applied to snare the unwary where its purpose has been satisfied” [Citation].

(*Stockett v. Association of California Water Agencies Joint Powers Insurance Authority* (2004) 34 Cal.4th 441, 446.)

District demurs to the entire Complaint, alleging that Plaintiff’s government claim (“Claim”) contained insufficient details to comply with the Government Claims Act. Plaintiff argues that District failed to seek judicial notice of her Claim, and further contends that the Claim substantially complies with the Government Claims Act

A demurrer is based on the allegations pleaded in the complaint or judicially noticed documents. (C.C.P. § 430.30(a); *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

In support of its argument that the Claim does not comply with the Government Claims Act, District attaches a copy of the Claim to its motion to strike. However, the Complaint does not contain a copy of the Claim nor refer to its specific contents, and District has

not sought judicial notice of the Claim. Without judicial notice, the Claim constitutes extrinsic evidence that cannot be considered in evaluating a demurrer. (*Southern Pacific Land Co. v. Westlake Farms, Inc.* (1987) 188 Cal.App.3d 807, 817 [“ ‘Because the demurrer tests the pleading alone, and not the evidence or other extrinsic matters, it lies only where the defects appear on the face of the pleading.’ [Citation.]”].) Thus, the Court overrules the demurrer based on District’s argument that Plaintiff’s Claim fails to comply with the Government Claims Act.

Even if the Claim were properly before the Court, District’s argument fails because the Claim substantially complies with the Government Claims Act.

“[A] claim under Government Code section 910 is sufficient if (1) there is ‘*some* compliance with *all* of the statutory requirements’; and (2) the claim discloses sufficient information to enable the public entity adequately to investigate the merits of the claim so as to settle the claim, if appropriate. [Citation.] The latter inquiry is known as the substantial compliance test.” (*County of Los Angeles v. Sup. Ct.* (2008) 159 Cal.App.4th 353, 360 [original emphasis].)

“Under the doctrine of substantial compliance the court may conclude a claim is valid if it substantially complies with all of the statutory requirements for valid claim even though it is technically deficient in one or more particulars. [Citation.] The doctrine is based on the premise that substantial compliance fulfills the purpose of the claims statutes, namely, to give the public entity notice of the nature of the claim so that it may investigate and settle those having merit without litigation. [Citation.] The doctrine of substantial compliance is normally raised where a timely but deficient claim has been presented to the public entity.” (*Santee v. Santa Clara County Office of Education* (1990) 220 Cal.App.3d 702, 713.)

Although the required “general description” of the injury and the statement of “date, place and other circumstances of the occurrence” need not be set out in evidentiary detail or comply with formal pleading standards, “[t]he purpose of the claim is to present sufficient detail ‘to reasonably enable the public entity to make an adequate investigation of the merits of the claim and to settle it without the expense of a lawsuit.’” (*Blair v. Sup. Ct.* (1990) 218 Cal.App.3d 221, 224.)

District argues that Plaintiff did not substantially comply with the Government Claims Act because the general description of the claim was insufficient to support her causes of action for negligence, negligent hiring, supervision, and retention, and negligent infliction of emotional distress.

Here, the Claim states that Plaintiff was repeatedly physically, emotionally, verbally, and sexually harassed by John Francisco Juan, a fellow classmate, who sent inappropriate messages and media to her cell phone and touched her inappropriately between her legs and under her clothes. (Motion to Strike, Exh. 1 [“Claim”].) Plaintiff stated that she reported these incidents to Vice Principal Eugene Titus and that a No Contact Contract was proposed, but claimed that the contract did not make a difference because Plaintiff was still sharing a class and sitting next to the classmate at issue. (*Id.*) Plaintiff further contends that the other classmates who bullied her suffered no consequences. (*Id.*)

Here, the Claim is sufficient to place District on notice of Plaintiff's claims, as it adequately describes the events in question to notify District that Plaintiff had complained about harassment to District personnel, but that District's response was insufficient to address Plaintiff's complaints. By naming the offending classmate and District personnel and describing the events in question with detail, the Claim is sufficient to enable District to make an adequate investigation of its merits and settle it without the expense of a lawsuit. As such, the Claim substantially complies with the Government Claims Act.

FIRST CAUSE OF ACTION FOR STATUTORY NEGLIGENCE

The Government Claims Act ("the Act") is a comprehensive statutory scheme that sets forth the liabilities and immunities of public entities and public employees for torts. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 969, fn. 5.) The Act declares that except as otherwise provided by statute, a public entity is not liable for an injury whether such injury arises out of an act or omission of the public entity or a public employee or any other person. (Gov. Code, § 815(a).) Under the Act, liability of a public entity may be direct or derivative. Direct liability is governed by Government Code § 815.6. Direct liability of a public entity under Government Code § 815.6 provides that liability can be found for violation of a statute that imposes a mandatory duty. (*Bradford v. State of California* (1973) 36 Cal.App.3d 16, 19.) In order to assert a government entity's liability for injuries resulting from the entity's breach of a mandatory duty, a plaintiff must specifically allege liability in his or her complaint, and the plaintiff must specifically identify the statute or regulation alleged to create a mandatory duty. (*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1349.)

"Every teacher in the public schools shall hold pupils to a strict account for their conduct on the way to and from school, on the playgrounds, or during recess." (Ed. Code § 44807.)

Here, Plaintiff alleged that under Education Code § 44807, District had a mandatory and affirmative duty to supervise pupils on school property during school hours. (Complaint, ¶ 19.) Plaintiff contends that District breached such mandatory duty when it failed to protect Plaintiff from harassment, abuse, and bullying, and failed to formulate, implement, or enforce policies and procedures on anti-bullying / harassment or proper methods to supervise students on school premises. (Complaint, ¶ 20.)

District argues that Education Code § 44807 does not impose any duty on District as a public entity, but only applies to teachers. However, courts have long recognized that a school district may be vicariously liable under Government Code § 815.2 for its employees' failure to properly supervise students under Education Code § 44807. (See *Dailey v. Los Angeles Unified Sch. Dist.* (1970) 2 Cal.3d 741, 747 [recognizing duty of supervision]; *C.A. v. William S. Hart Union High Sch. Dist.* (2012) 53 Cal.4th 861, 869 ["Ample case authority establishes that school personnel owe students under their supervision a protective duty of ordinary care, for breach of which the school district may be held vicariously liable."]; *Avila v. Citrus Community Coll. Dist.* (2006) 38 Cal.4th

148, 158 [“Public schools have a duty to supervise students”] [citing Ed. Code § 44807].)

District then argues that Plaintiff fails to specifically identify the District employee(s) who acted or failed to act. Although material facts must be pleaded with particularity to establish statutory public entity liability, it is not necessary to plead the identity of each government employee. (*C.A., supra*, 53 Cal. 4th at 872.)

SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING, SUPERVISION, TRAINING, AND RETENTION OF EMPLOYEES

District then to Plaintiff’s second cause of action, arguing that it is duplicative because all three causes of action sound in negligence. However, a cause of action for negligent hiring, supervision, and retention contains additional elements necessary to establish a duty of care. (See *Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1142 [holding that two additional elements are necessary for a duty to arise under a cause of action for negligent hiring, supervision and retention: the existence of an employment relationship and foreseeability of injury].)

However, Plaintiff fails to allege sufficient facts to constitute a cause of action for negligent hiring, supervision, training, or retention.

An employer can be held liable for the negligent hiring, supervision, or retention of an unfit employee if the employer knew or should have known that the employee created a particular risk and that particular harm materializes. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038.) The direct liability of an employer for negligent hiring, supervision and training is distinct from the vicarious liability for the negligence of a public employee under Govt. Code § 815.2 and is generally improperly asserted against a public entity without a statutory basis. (*De Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 252.)

However, claims against school districts based on their direct negligence in hiring and supervising teachers may be pursued. (*C.A., supra*, 53 Cal.4th at 879; *Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1855.) This is because “a school district and its employees have a special relationship with the district’s pupils, a relationship arising from the mandatory character of school attendance and the comprehensive control over students exercised by school personnel, analogous in many ways to the relationship between parents and their children.” (*C.A., supra*, 53 Cal.4th at 869.) If school district employees, including principals and other supervisors, responsible for hiring and/or supervising teachers know or should have known of a teacher’s prior misconduct posing a reasonably foreseeable risk of harm to students under the teacher’s supervision, the supervisory employees owe a duty to protect students from such harm. (*Id.* at 870.)

To support a claim for negligent hiring, supervision, and retention, Plaintiff must allege that: (1) District hired a particular employee; (2) that employee was or became unfit or incompetent to perform his or her work; (3) District knew or should have known that the employee’s unfitness or incompetence created a particular risk of harm to others; (4) the

employee's unfitness or incompetence harmed Plaintiff; and (5) District's negligence in hiring, supervising, or retaining the employee was a substantial factor in causing Plaintiff's harm. (CACI 426).

A plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act." (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902.) "Negligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.' [Citation.]" (*Phillips, supra*, 172 Cal.App.4th at 1139.)

Here, Plaintiff alleges that District "breached their duty of care by failing to properly train, supervise, hire and control Ramona High School personnel and otherwise prevent students from bullying, abusing and/or harassing Plaintiff." (Complaint, ¶ 26.) However, the Complaint contains no facts or allegations to support that District knew of the bullying, as it only alleges that "teachers and administrators had actual knowledge of the harassment and bullying Plaintiff experienced." (Complaint, ¶ 29.) The Complaint also fails to allege that District had, or should have had, prior knowledge that an employee presented a particular and undue risk of harm to state a claim for negligent hiring, supervision, or retention. (*Doe, supra*, 50 Cal.App.4th at 1038; *Federico, supra*, 59 Cal.App.4th at 1207.) In addition, Plaintiff failed to allege that a person in a supervisory position over the employee had prior knowledge of the employee's deficiencies, as required to state a claim for negligent supervision. (*Z.V., supra*, 238 Cal.App.4th at 902; see also *Y.P. v. Wells Fargo* (2026) 119 Cal.App.5th 1069, 1088-1089.) Accordingly, Plaintiff alleged sufficient facts to state a claim for negligent hiring, supervision, training, and retention.

THIRD CAUSE OF ACTION FOR NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

The elements of NIED are: (1) legal duty to use due care; (2) breach of such legal duty; (3) damage or injury; and (4) cause of the resulting damage or injury. (*Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129.) NIED is divided into two claims, direct victim claims or bystander claims. (*Smith v. Pust* (1993) 19 Cal.App.4th 263, 273.) Plaintiff appears to allege a direct victim claim, which requires a duty – either imposed by law, assumed by the defendant, or exists by a special relationship. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 985.) "[U]nless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests." (*Ibid.*)

Plaintiff alleges that as a result of District's breach of its duty to protect her from harassment and physical assault from her peers, Plaintiff has suffered severe emotional distress because she was deprived of a safe environment conducive to learning, forced to transfer schools, lives in constant fear of being found by her harassers, and has missed her valuable high school years. (Complaint, ¶ 35.) Plaintiff also alleges that as a

direct and proximate result of District's breach, she was physically assaulted by her classmate and has sustained serious or severe "emotional, mental, physical, and nervous pain and suffering." (Complaint, ¶¶ 15 and 36.) As such, Plaintiff has alleged sufficient facts to state a cause of action for NIED at the pleadings stage.

District then demurs to the third cause of action for NIED, arguing that it is duplicative of the first cause of action for negligence. Indeed, NIED is not a separate tort but is a species of negligence. (*Downey v. City of Riverside* (2024) 16 Cal.5th 539, 547; *Marlene F. v. Affiliated psychiatric Med. Clinic, Inc.* (1989) 48 Cal.3d 583, 588.) Because NIED is a form of negligence, "[the] traditional elements of duty, breach of duty, causation, and damages apply. (*Downey, supra*, 16 Cal.5th at 547 [internal quotes omitted]; *Arista v. County of Riverside* (2018) 29 Cal.App.5th 1051, 1062-1063.) Where a plaintiff is physically injured, damages for resulting emotional distress are recoverable as "parasitic" damages. (*Potter v. Firestone Tire & Rubber co.* (1993) 6 Cal.4th 965, 981.) Courts have long held that a duplicative cause of action is also a basis for sustaining a demurrer. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268 [duplicative cause of action for breach of fiduciary duty subject to dismissal by way of demurrer]; *Award Metals, Inc. v. Superior Court* (1991) Cal.App.3d 1128, 1135 [demurrer properly sustained to duplicative negligence cause of action].) However, although other courts have disagreed regarding a "duplicative" challenge, the Court should not sustain the demurrer at the pleadings stage on that basis. (See *Palm Springs Villas II Homeowners Assn., supra*, 248 Cal.App.4th at 290.) This is especially true because "[t]his is the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890.)

MOTION TO STRIKE

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike [a pleading] or any part thereof[.]" (C.C.P. § 435(b)(1).) The Court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, "[s]trike out any irrelevant, false, or improper matter inserted in any pleading." (C.C.P. § 436(a).) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (C.C.P. § 437(a).)

An immaterial or irrelevant allegation is one that "is not essential to the statement of a claim or defense"; "is neither pertinent to nor supported by an otherwise sufficient claim or defense"; or "[a] demand for judgment requesting relief not supported by the allegations of the complaint[.]" (C.C.P. § 431.10(b).) No extrinsic evidence may be considered to determine whether an allegation is false, as any falsity must appear from the face of the pleadings or from matters judicially noticed. (C.C.P. § 437(a).) Here, District moves to strike the entire Complaint based on its argument that the Claim fails to comply with the Government Claims Act. However, as thoroughly discussed above, District's argument fails because the Claim is extrinsic evidence that cannot be considered in evaluating a motion to strike, and because the contents of the Claim substantially comply with the Government Claims Act.

District then moves to strike Plaintiff's prayer "for costs of suit herein incurred" to the extent that it may include attorney fees. However, the Complaint does not contain any mention of attorney fees.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601687	THOMAS vs ESTATE OF GREGORY JORDAN SR	MOTION FOR ORDER DEEMING ADMITTED TRUTH OF FACTS AND GENUINENESS OF DOCUMENTS

Tentative Ruling:

Plaintiff's Motion for Order Deeming Admitted Truth and Genuineness of Documents is denied.

Requests for Sanctions is denied.

Where a party fails to respond to RFAs, the propounding party may move for an order that RFAs be deemed admitted. (Code Civ. Proc., § 2033.280(b).) "[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein." (*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979.) However, a responding party's service, prior to the hearing on the "deemed admitted" motion, of substantially compliant responses, will defeat a propounding party's attempt under § 2033.280(b) to have RFAs deemed admitted. (*Tobin v. Oris* (1992) 3 Cal.App.4th 814, 827, *disapproved on other grounds*, *Wilcox*, *supra*, 21 Cal.4th 973, 983, fn. 12.)

Mandatory electronic service applies to "[a] person represented by counsel, who has appeared in an action or proceeding." (Code Civ. Proc., § 1010.6(b)(2).) An unrepresented person in a civil action may receive electronic service "by consent," but express consent must be: given by serving a notice on all parties and filing a notice with the court, or, by "[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address." (*Id.*, § 1010.6(c)(1)-(3).)

Here, Plaintiff's proof of service shows only e-mail transmission. (Supplemental Thomas Decl., Ex. B.) Plaintiff's reply concedes that she served the discovery on 7/9/26 only to the email address in that proof of service. (Reply Supp. Thomas Decl., ¶ 3.) The record however does not show a statutory basis for electronic service. Counsel had not appeared for Hodges on 7/9/26. (Choi Decl., ¶ 2.) Plaintiff sent the discoveries only to Hodges's personal email. (*Id.*, ¶ 4.) The record does not contain a filed notice of consent or affirmative consent given through the court or its electronic filing service provider. (CCP § 1010.6(c)(1)-(3).) Defense counsel also declares that no electronic service agreement was in place. (Choi Decl., ¶ 3.) Even if counsel instructed Plaintiff to serve Hodges directly, there was no consent for electronic service. Plaintiff's understanding that she should serve papers at Hodges does not establish that Hodges